

ELIZABETH II



1975 CHAPTER v

An Act to enable Ocean Transport & Trading Limited, Panocean Shipping & Terminals Limited, Overseas Containers Limited and Arbuthnot Storage Limited and their subsidiary companies to issue transferable certificates and warrants for the delivery of goods; and for other purposes. [8th May 1975]

WHEREAS—

(1) Ocean Transport & Trading Limited is a company limited by shares within the meaning of the Companies Acts 1948 to 1967 formed for the purpose, inter alia, of carrying on the business of warehousemen, wharfingers, storekeepers and factors and, by its associated companies hereinafter referred to and subsidiaries, carries on such business in a number of ports and other places in the United Kingdom:

(2) Panocean Shipping & Terminals Limited, Overseas Containers Limited and Arbuthnot Storage Limited are also companies limited by shares within the meaning of the said Acts

and are associated with Ocean Transport & Trading Limited in the conduct of its business as aforesaid, being companies in which it holds, in the case of Panocean Shipping & Terminals Limited and Arbuthnot Storage Limited, fifty per cent. and, in the case of Overseas Containers Limited, forty-nine per cent. of the nominal value of the equity share capital:

1889 c. 45.

(3) For many years Ocean Transport & Trading Limited, the said associated companies or subsidiaries or their predecessors engaged in the business aforesaid have issued certificates or warrants for the delivery of goods for the purposes of the Factors Act 1889 and otherwise, but doubts have arisen as to the validity of such certificates and warrants as documents of title to the goods specified therein and it is expedient that, in order to remove such doubts, powers similar to those conferred by previous enactments upon various companies and persons to issue transferable certificates and warrants for the delivery of goods should be conferred upon the said companies:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Ocean Transport and Trading (Delivery Warrants) Act 1975.

Interpretation.

2. In this Act unless the subject or context otherwise requires—

1948 c. 38.

“the Companies” means Ocean Transport & Trading Limited, Panocean Shipping & Terminals Limited, Overseas Containers Limited and Arbuthnot Storage Limited, and includes any company which is for the time being a subsidiary of any of the said companies as defined by section 154 of the Companies Act 1948 and persons at any time carrying on the business of warehousemen, wharfingers, storekeepers or factors in succession to any such companies; and “the Company” means any one of the Companies;

1893 c. 71
(56 & 57 Vict.).

“goods” means wares, merchandise and goods of all descriptions as defined by section 62 of the Sale of Goods Act 1893.

Issue of
transferable
certificates or
warrants.

3.—(1) The Company may if it thinks fit from time to time, at the request of any person warehousing or depositing goods in or upon any warehouse or premises of the Company, or entitled to any goods so warehoused or deposited, issue to him, subject

to such terms and conditions as may be determined, a certificate of such goods having been so warehoused or deposited or a warrant for the delivery of such goods or any part of the goods specified in such warrant.

(2) The Company may if it thinks fit issue in its own name the like certificates or warrants in respect of its own goods so warehoused or deposited.

4. Every such certificate or warrant shall be deemed to be a document of title to the goods specified therein and shall be transferable by endorsement or special endorsement; and the holder of any such certificate or warrant (whether the person named therein, or the bearer of any such certificate or warrant bearing an open endorsement, or the endorsee of any such certificate or warrant bearing a special endorsement) shall, subject to the payment of the rent and charges payable to the Company in respect of the goods specified in the certificate or warrant, have the same right to the possession and property of those goods as if they were deposited in his own warehouse.

5. Every such certificate or warrant shall state on the face thereof the effect of the last foregoing section and that it is issued under the powers of this Act.

6. No goods specified in any certificate or warrant issued under this Act shall be delivered by the Company except upon the production to the Company of the certificate or warrant and upon either the cancellation by the Company of the certificate or warrant or, if part only of the goods specified therein are to be delivered, the making of an endorsement thereon by the Company specifying the goods so delivered.

7. If any certificate or warrant issued under this Act is lost or destroyed then, upon proof thereof to the satisfaction of the Company or its directors, and on receipt by the Company of an indemnity satisfactory to the Company or its directors, the Company shall issue a new certificate or warrant to the person entitled to the certificate or warrant so lost or destroyed in substitution therefor.

8. No certificate or warrant shall be issued under this Act in respect of any goods until—

- (a) all claims and liens for freight; and
- (b) all other claims or liens to which the goods were subject on board any vessel and before the warehousing or depositing thereof;

being claims or liens of which the Company have had notice in writing, have been discharged.

Company
bound by
certificates
or warrants.

9. All certificates or warrants issued under this Act signed and issued by any person duly authorised in that behalf shall be binding on the Company and on all other persons interested without any other signature and without any seal.

Application
to Scotland.

10. This Act shall extend to Scotland.

Application
to Northern
Ireland.

11. It is hereby declared that this Act extends to Northern Ireland.

Costs of Act.

12. The costs, charges and expenses of, and incidental to, the preparation, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by Ocean Transport & Trading Limited.

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